

THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT:

MR. JUSTICE MUHAMMAD HASHIM KHAN KAKAR
MR. JUSTICE SALAHUDDIN PANHWAR
MR. JUSTICE ISHTIAQ IBRAHIM

Criminal Petition No.847/2023

(Against the judgment dated 11.05.2023,
passed by the Lahore High Court, Multan
Bench in Criminal Appeal No.850/2022)

Muhammad Shafi & others

...Petitioner(s)

VERSUS

The State

...Respondent(s)

For the Petitioner(s): Sardar Usman Sharif Khosa, ASC a/w
Rana Muhammad Luqman, AHC &
Mr. Hassan Kamran, AHC

For the State: Mr. Zafar Iqbal Chouhan, S.P ANF
(through Video link Lahore)

Assisted By: Ms. Tayyaba Munir, Law Clerk

Date of hearing: 04.05.2026

JUDGMENT

ISHTIAQ IBRAHIM, J.- The petitioners namely Muhammad Shafi son of Abdul Kareem, Rooh Ullah son of Peer Muhammad, Najeeb Ullah son of Enayat Ullah, and Wazir Muhammad son of Mola Daad, were tried by the learned Additional Sessions Judge/Special Judge CNS, Multan, in case FIR No. 27 of 2020, dated 21.11.2020, registered at Police Station ANF, Multan, for offences under Sections 9(c) and 15 of the Control of Narcotic Substances Act (CNSA), 1997. Upon the conclusion of the trial, the learned trial court, vide judgment dated 25.08.2022, found the petitioners guilty and sentenced each of them to imprisonment for life along with a

fine of Rs. 100,000/- (and in default thereof, to undergo further simple imprisonment for one year). Aggrieved by the trial court's findings, the petitioners preferred an appeal before the Lahore High Court; however, their convictions and sentences were maintained and their appeal was dismissed. It is against this backdrop that the petitioners have approached this Court, seeking leave to appeal against the concurrent findings of the courts below.

2. The genesis of the prosecution's case is rooted in a secret information purportedly received by the Anti-Narcotics Force (ANF), Multan, on 21.11.2020. It was alleged that a substantial consignment of narcotics was being transported from Quetta toward the suburbs of Multan and Vehari via two specific vehicles: a Toyota Corolla (RU-090/ICT) and a Double Cabin Hilux (KQ-5557/Sindh). Acting upon this intelligence, a raiding party, led by Arsalan Arif, SI (PW-4), established a picket near the Toll Plaza, Taunsa Sharif. At approximately 05:15 AM, the aforementioned vehicles were spotted. Upon being signaled to stop, the drivers attempted to evade the authorities by accelerating, but were eventually intercepted.

3. During the commotion, one individual, identified as Syed Haq Nawaz Agha (later declared a Proclaimed Offender), allegedly abandoned the Toyota Corolla and successfully fled the scene, taking advantage of the twilight hours. In the same vehicle, the petitioners Muhammad Shafi, seated in the front, and Rooh Ullah, positioned in the rear, were both alleged to have voluntarily produced white plastic bags from beneath their respective feet, each containing 15 packets of Charas (weighing 1200 grams per packet), culminating in a total recovery of 18 kilograms from each individual. This initial seizure was supplemented by the discovery of a sophisticated secret compartments within the vehicle's trunk (*diggi*), which necessitated the use of tools to extract an additional 54 packets of Charas (weighing 1200 grams each), culminating in a total recovery of 64.800 kilograms attributed to co-accused Haq Nawaz/PO.

A parallel search of the Double Cabin Hilux was conducted, where the driver, Najeeb Ullah, purportedly handed over five packets (weighing 1200 grams each culminating in a total 6 kg) of *Charas* wrapped in yellow tape and blue plastic from beneath his seat before revealing a hidden compartment in the rear floor of the cabin. This secret cavity yielded 95 packets of *Charas* (weighing 1200 grams each culminating in a total 114 kg), bringing the total weight attributed to him to 120 kilograms. Simultaneously, the petitioners Wazir Muhammad, who was the front-seat passenger, was alleged to have handed over 15 packets weighing 1200 grams each culminating in a total 18 kilograms of the contraband found between his feet. In total, the prosecution claims to have recovered 199 packets of *Charas* across both vehicles, from which the Investigating Officer extracted 10-gram samples from each packet, creating 199 sealed parcels for chemical analysis which were allegedly sealed on the spot using a stamp bearing the initials "AA". The remaining bulk was packed into separate master parcels. Out of five, four accused were apprehended on spot with one fleeing the scene.

4. We have heard the learned counsel for the Petitioners as well as the learned Special Prosecutor ANF at some length, and with their able assistance, have scrutinized the evidentiary record with anxious care.

5. The foundational edifice of the prosecution's case is severely undermined by a glaring and irreconcilable contradiction regarding the arrest of the co-accused, Syed Haq Nawaz Agha. While the FIR and the testimony of the complainant (PW-4) categorically assert that the said individual effected his escape from the driving seat of one of the intercepted vehicles, taking advantage of the twilight hours, such a narrative is effectively demolished by the unimpeachable photographic evidence brought on record as Ex. DD. This visual record portrays all five accused individuals including the alleged absconder in the custody of the Anti-Narcotics Force (ANF), bound in handcuffs and flanked by official

personnel. Upon being confronted with the photographic record Ex. DD during cross-examination, the Investigating Officer (PW-4) conceded to the genuineness of the said image, thereby formally admitting the presence of the allegedly absconding co-accused, Syed Haq Nawaz Agha, in the active custody of the ANF. The relevant portion of his statement is reproduced below:

“It is correct that in Exh.DD which is a photograph and shown to me right. now, I endorsed that all the four accused present before the court are shown in this photograph. The fifth accused Syed Haq Nawaz Agha is present in this photograph and I have seen that in this photo. Again said who ran away from the spot subsequently. Rashid constable is also shown to be present in the said photograph Exh.DD. It is again correct that photograph Exh.DD shows both the vehicles/case property of this case are also shown to be present alongwith the accused.”

This stark contradiction effectively demolishes the theory of his escape, leading to the irresistible conclusion that he was indeed in custody of ANF and was subsequently released by the concerned authorities themselves thereby exposing a fraud upon the court.

6. Furthermore, the plea of innocence raised by the petitioners in their statements recorded under Section 342 Cr.P.C. also finds formidable support from a chain of corroborative evidence that this Court cannot ignore. The petitioners have consistently maintained that they were falsely implicated as a retaliatory measure following their protest against the illegal detention of Syed Haq Nawaz Agha. The relevant portion of their statement is reproduced below:

Q.No.10: Why this case against you and why the PWs have deposed against you?

Ans. The story of the prosecution is fake, fictitious and concocted one. Nothing was, recovered from my possession or on my pointation. I have no shady past to involve, in such like heinous offences. I was never boarded in the said vehicle. I led a very simple life and earned bread and butter as a labourer in a fruit market Multan since long. I also belong to Pakistan Patriotic Youth Organization who worked for the welfare of the poor and needy people living in Balochistan. On the day of eve, I was summoned by the ANF Police Multan through telephonic call, upon which I alongwith Muhammad Shafi, Najib-Ullah and Wazir Ahmad went to the police station and came to know that accused Syed Haq Nawaz Agha was arrested by the ANF Multan.

I alongwith others met with Syed Haq Nawaz Agha who stated that no recovery was effected from him, upon which, I alongwith others raised protest before the Deputy Director ANF Multan. During that the ANF officials beaten me and Muhammad Shafi severely, upon which, both of us received severe injuries on different parts of bodies. The internal organs of the body like kidney and large intestine were also damaged and bleedings were started from the urine, stools, well as from the mouth. My relatives filed application before the Magistrate for conducting of medical examination, upon which, on the order of Magistrate, both the injured were medically examined. I alongwith others were falsely implicated in the instant case due to protest raised by me alongwith other before the Deputy Director ANF Multan, so, the ANF officials who became inimical towards me alongwith others. and falsely implicated in the instant case without recovery. During that, the complainant let off the actual accused Syed Haq Nawaz Agha after getting bribe.

My relatives filed an application before the Director General ANF Islamabad alongwith the picture (Ex.D.D) wherein Syed Haq Nawaz Agha (Ex.D.D/ 1) was shown to be arrested by ANF Police Multan and later on he was allowed to let off from the police station illegally and unlawfully, upon which, the inquiry was stand registered on the application of Pakistan Patriotic Youth and the record was summoned from the P.S ANF Multan by the D.G ANF but the complainant with malafide intention in order to avoid any inquiry. furnished the report u/s 173 Cr.P.C. of instant case on 10.12.2020, upon which, the D.G ANF directed the relatives of the accused to approach before the trial court because after the submission of report u/s 173. Cr.P.C, he was having no authority to inquire the matter. During the cross examination the complainant/PW.4 admitted the picture (Ex.D.D) as well as presence of the Syed Haq Nawaz Agha (Ex.D.D/ 1) in the police station alongwith other four accused with handcuffs, so, the story with regard to ran away from the spot as mentioned in the complaint Ex.P.A and FIR Ex.P.A/1 is totally false, fictitious and concocted which the prosecution failed to prove during the evidence and after the consultation and deliberation with the highups the complaint Ex.P.A and FIR Ex.P.A/1 was lodged with malafide intention.

All the PWs are ANF officials, although the alleged place of occurrence is a very busy road which link provinces. The complainant with malafide intention did not associate any private person during the alleged recovery proceedings, despite the fact that the officials of Pakistan Rangers as well as the officials of Provincial police are available round the clock around the toll plaza. The PW deposed falsely against us on the asking of their high-up's in order to save their skin because if they did not depose in line then they will be censured as per ANF rules.

7. The above-mentioned stance of the petitioners is not a mere bald assertion rather; it is fortified by a series of medical documents which provide a chilling corroboration of their plea of custodial high-handedness. We have first perused the Medical Report issued by the Medical Officer, District Jail Multan (Ex. DF-4). The relevant portion of the said report is reproduced as under:

"It is submitted that the both undertrial prisoners were examined (i) Roohullah s/o Peer Bukhsh has complaint of diffused chest pain and (ii) Muhammad Shafi s/o Abdul Kareem has complaint of pain in both flanks and is giving history hematuria. Both accused are saying that they were beaten by police during arrest. A call has been sent Medical Superintendent Nishtar Hospital Multan vide letter No. 21365 dated 01.12.2020 for further management and opinion from General Surgeon, Sonologist and Pulmonologist."

This assessment was further substantiated by the comprehensive Medical Legal Certificate (Ex. DF-1) which provide a detailed inventory of the trauma sustained by the petitioners. The pertinent excerpt from the MLC is as follows:

"It is submitted that undertrial prisoner Rooh Ullah S/o Peer Bukhsh has been examined by Dr. Tahir Bandesha, Senior Registrar Nishtar Hospital, Multan on 08.12.2020. According to the consultant patient has shortness of breath, pain epigastrium, Blood in sputum. Medicine has been prescribed by the consultant and prescribed medicines has been provided to the patient..."

It is further submitted that undertrial prisoner Muhammad Shafi s/o Abdul Kareem has been examined by Dr. Tahir Bandesha, Senior Registrar Nishtar Hospital Multan on 08.12.2020. According to the consultant surgeon, patient has multiple lacerations and history of hematuria. Medicine has been prescribed and being provided to him..."

The existence of these injuries, coupled with a formal grievance lodged by the Pakistan Patriotic Youth Organization (Ex. DA), creates a compelling nexus between the alleged torture and the subsequent fabrication of the recovery.

8. The principle of treating the testimony of official witnesses as inherently reliable in such cases is a cornerstone of the criminal jurisprudence that founds its foundation upon a venerable legal maxim namely *"all things are presumed to have been done rightly*

and solemnly" [omnia praesumuntur rite et solemniter esse acta]. This **presumption of regularity** in official acts rests on the trust that state functionaries, in the discharge of their public duties, act with honesty and without any motive to implicate the innocent. However, this presumption is not absolute and it is a rebuttable inference that remains valid only so long as the record is not tainted by evidence of mala fides, procedural dishonesty, or a departure from the path of justice.

In the case at hand, the petitioners, in their statements under Section 342 Cr.P.C., have articulated a consistent narrative of an altercation and subsequent victimization. This plea is substantially corroborated by the documented grievance application filed by the Pakistan Patriotic Youth Organization (Ex. DA) as a formal request for an inquiry into the conduct of the ANF officials. Furthermore, the physical trauma recorded in the MLCs provides further anchor to the claim of custodial violence, transforming a mere allegation into a proven fact of abuse. Most damningly, the deliberate and perjured narrative made in FIR and also in statement made by the prosecution witness regarding the 'fleeing' of Syed Haq Nawaz Agha whose presence is verified by Ex. DD, shatters the mask of impartiality required of the ANF officials. Interestingly, the prosecution themselves expressed an intent to subject the image to forensic scrutiny, as evidenced by the Order Sheet dated 30.5.2022, the relevant part of which is reproduced below:

"Learned SPP for ANF contended that after seeking instructions from the competent authority, she would move application for forensic test of Photograph Ex.DD, on the next date of hearing."

Tellingly, following this commitment, the ANF remained conspicuously silent for reasons best known to them. This strategic retreat and subsequent "mummery" regarding the forensic verification further strengthens the plea of mala fides, as it suggests a deliberate avoidance of a scientific inquiry.

While it is a settled principle that police witnesses are as competent as any other witness, the presumption of their reliability

is not absolute. In the instant case, this presumption of regularity has been effectively rebutted through clear evidence of mala fides, custodial torture, and manifest procedural dishonesty. The trust the criminal justice system reposes in official witnesses is an expectation of honesty and not a clean chit to wield power with impunity. Where the defense has successfully rebutted presumption of regularity by establishing a high probability of planting and retaliation, the testimony of the official witnesses can no longer be deemed reliable or independent. Consequently, the conviction cannot be sustained on the basis of witnesses whose conduct is so clearly steeped in malice and procedural dishonesty.

9. In the presence of such overwhelming evidence of mendacity, the defence plea gains a high degree of veracity. It appears highly probable that the petitioners were utilized as 'scapegoats' to fill the void left by the illicit release of the actual offender. Consequently, the prosecution's failure to explain these injuries, taken together with the fabricated story of the absconder's escape, shatters the certainty required for a conviction, entitling the petitioners to an acquittal on the basis of a reasonable and multi-faceted doubt.

10. For the reasons discussed above, this petition is converted into an appeal and allowed. The impugned judgment passed by the learned Lahore High Court, Multan Bench, as well as the judgment of the learned Trial Court, are hereby set aside. The appellants, namely Muhammad Shafi, Rooh Ullah, Najeeb Ullah, and Wazir Muhammad, are acquitted of the charges leveled against them. They shall be released forthwith, if not required to be detained in connection with any other case.

11. Before parting with this judgment, we are constrained to observe that the mendacity exhibited by the investigating agency, specifically regarding the fabricated escape of an accused, is a matter of grave concern that strikes at the root of the rule of law. Such high-handedness by the ANF cannot be countenanced by this Court. We, therefore, direct the relevant and competent authorities of the ANF to look into this matter with immediate effect and a

formal departmental inquiry shall be initiated against the officials involved in this case in accordance with law.

Judge

Judge

Judge

Approved for Reporting

Tayyaba Munir, Law Clerk